

26STCV09075 26STCV09075

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Case Number: 26STCV09075 Hearing Date: August 24, 2026 Dept: 307

3 10 TENTATIVE RULING 9:00 a.m., Monday, August 24, 2026

PHILIP P.

DELUCA v. ROBERT BISHOP, et al. [26STCV09075]

PLAINTIFF

PHILIP P. DELUCA, ESQ. DBA LAW OFFICES OF PHILIP P. DELUCA'S MOTION TO DISQUALIFY DEFENDANTS JEROME CLAY ESQ. AND LAW OFFICE OF JEROME A. CLAY FROM REPRESENTING DEFENDANT ROBERT BISHOP

TIMELINE:

attorney-client fee dispute (complaint); legal malpractice, etc. (X-complaint)

12/13/2019: Defendant Robert Bishop III

("Bishop") retains Plaintiff Philip P. DeLuca, Esq. DBA Law Offices of Philip P. DeLuca ("DeLuca") for legal representation in the underlying personal injury matter of Bishop v. Penatover, Case No. 20STCV47832 (the "Underlying Action"). Bishop and DeLuca execute a written contingency fee agreement providing DeLuca with a contractual lien against any recovery in the Underlying Action.

7/28/2025: DeLuca voluntarily withdraws from

representing Bishop in the Underlying Action. Thereafter, Bishop retains the legal services of Defendants Jerome A. Clay, Esq. and the Law Office of Jerome A. Clay (collectively, "Clay" or the "Clay Defendants").

7/29/2025: DeLuca serves a written Notice of

Attorney's Lien upon Bishop and Clay against any settlement proceeds in the

Underlying Action.

11/25/2025: Clay and Bishop allegedly settle the Underlying Action. DeLuca is not notified of the settlement until he is served with a Motion to Strike and/or Expunge the Contractual Lien for Attorney Fees in the Underlying Action, filed by Clay.

3/5/2026: The Court denies the Motion to Strike/Expunge the Contractual Lien based on lack of jurisdiction.

3/20/2026: DeLuca files the Complaint in this action against Bishop and the Clay Defendants.

5/7/2026: Bishop files a Cross-Complaint against DeLuca.

7/2/2026: The Court enters a final ruling on Bishop and Clay's Special Motion to Strike the Complaint, Bishop and Clay's Demurrer to the Complaint, and DeLuca's Demurrer to the Cross-Complaint. The Anti-SLAPP Motion is granted in part and denied in part. The Demurrer to the Complaint is sustained (with leave to amend in part and without leave to amend in part). The Demurrer to the Cross-Complaint is overruled in part, sustained without leave to amend in part, and sustained with leave to amend in part.

7/8/2026: DeLuca files this Motion to Disqualify Counsel, which is followed by Bishop and Clay's Opposition (8/11/2026) and DeLuca's Reply (8/17/2026).

7/13/2026: DeLuca files the operative First Amended Complaint ("FAC"), alleging causes of action for:

1. Breach of Contract (Contingency Fee Agreement)

2. Quantum Meruit

3. Declaratory Relief (Validity of Attorney Lien)

7/16/2026: Bishop files the operative First

Amended Cross-Complaint ("FAXC") against DeLuca, alleging causes of action for:

1. Professional Negligence (Legal Malpractice)

2. Breach of Fiduciary Duty

3. Fraudulent Concealment

4. Declaratory Relief

8/21/2026:

Bishop and Clay file Objections to the additional evidence

submitted

by DeLuca in support of his Reply.

TENTATIVE

RULING: PLAINTIFF PHILIP P. DELUCA'S MOTION TO DISQUALIFY COUNSEL is DENIED.

MOTION

TO DISQUALIFY COUNSEL

DeLuca

moves to disqualify the Clay Defendants from further representing Bishop in this action on the grounds that the Clay Defendants have a material limitation conflict of interest arising from their simultaneous status as counsel for Bishop and named defendants in this action. This motion is based upon Rule 1.7, subd. (b) of the California Rules of Professional Conduct ("CRPC") and the inherent authority of this Court.

Under

CRPC Rule 1.7, subd. (b), "[a] lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person, or by the lawyer's own interests." (CRPC Rule 1.7, subd. (b), italics added.) Comment [4] to Rule 1.7 clarifies that a conflict of interest requiring informed consent exists "if there is a significant risk that a lawyer's ability to

consider, recommend or carry out an appropriate course of action for the client will be materially limited as a result of the lawyer's other responsibilities, interests, or relationships, whether legal, business, financial, professional, or personal." (CRPC Rule 1.7, com. [4].) Under CRPC Rule 1.7, subd. (d), "[r]epresentation is permitted under this rule only if the lawyer complies with paragraphs (a), (b), and (c), and: (1) the lawyer reasonably believes that the lawyer will be able to provide competent and diligent representation to each affected client; (2) the representation is not prohibited by law; and (3) the representation does not involve the assertion of a claim by one client against another client represented by the lawyer in the same litigation or other proceeding before a tribunal." (CRPC Rule 1.7, subd. (d).)

As a

preliminary matter, Defendants argue that DeLuca lacks standing to bring the instant motion to disqualify Clay. (Opp., at p. 5.) Generally, the party seeking to disqualify counsel must have some confidential relationship (such as an attorney-client relationship) with that attorney. (Conservatorship of Lee C. (2017) 18 Cal.App.5th 1072, 1083 (Lee C.), citing Great Lakes Const., Inc. v. Burman (2010) 186 Cal.App.4th 1347, 1356.) Here, there is no dispute that the DeLuca and Clay Defendants lack a confidential relationship (whether now or in the past) which would confer standing upon DeLuca to disqualify the Clay Defendants. (Opp., at p. 5; Rep., at pp. 3, 5.) DeLuca effectively concedes that the relationship giving rise to the potential conflict of interest exists between Clay and Bishop, unrelated to DeLuca. (Mot., at p. 8; see FAC, ¶ 52.)

Nevertheless, California

does permit a non-client to move to disqualify opposing counsel under certain circumstances. For example, "where the ethical breach is 'manifest and glaring' and so 'infects the litigation in which disqualification is sought that it impacts the moving party's interest in a just and lawful determination of [his or] her claims' [citation], a nonclient might meet the standing requirements to bring a motion to disqualify based upon a third party conflict of interest or other ethical violation.' [Citation]." (Lee C., *supra*, 18 Cal.App.5th at p. 1083, quoting Kennedy v. Eldridge (2011) 201 Cal.App.4th 1197, 1204 (Kennedy), internal quotation marks omitted.) Thus, "where an attorney's continued representation threatens an opposing litigant with cognizable injury or would undermine the integrity of the judicial process, the trial court may grant a motion for disqualification, regardless of whether a motion is brought by a present or

former client of recused counsel.” (Lee C., *supra*, 18 Cal.App.5th at p. 1083, quoting Kennedy, *supra*, 201 Cal.App.4th at p. 1204.)

Here,

DeLuca argues that the Clay Defendants’ personal interests as Bishop’s co-defendants in this action cannot be reconciled with their role as Bishop’s litigation counsel, creating a “significant risk” that the Clay Defendants’ representation of Bishop “will be materially limited by” Clay’s “own interests.” (CRPC Rule 1.7, subd. (b).) The issue with this argument, however, is that DeLuca fails to present any meaningful factual basis to demonstrate a genuine conflict between Bishop and Clay’s positions in this lawsuit or to show that Clay is unable to comply with his ethical duties during the course of representing Bishop in this lawsuit, such that the conflict cannot be waived by Bishop.

First,

the Clay Defendant’s remaining role as defendants in this lawsuit is very limited in scope. The operative FAC alleges three causes of action for: (1) breach of contract, (2) quantum meruit, and (3) declaratory relief regarding the validity of DeLuca’s lien. (See FAC, generally.) All three causes of action are asserted against Bishop, whereas the only remaining claim against the Clay Defendants is the third cause of action for declaratory relief. In his claim for declaratory relief, DeLuca alleges that the Underlying Action ultimately resulted in a settlement agreement during Clay’s tenure as Bishop’s counsel. (FAC, ¶ 52.) DeLuca seeks a judicial declaration as to the validity and enforceability of his lien for attorneys’ fees and costs, which he asserted against the alleged settlement proceeds in the Underlying Action. (*Id.* ¶¶ 53-55.) Although the third cause of action is permeated with allegations pertaining to Clay’s negligence in representing Bishop in the Underlying Action, these allegations are entirely immaterial to the enforceability and validity of DeLuca’s fee lien. (*Id.*, ¶ 52.) Because DeLuca only seeks to resolve the validity of his lien against Bishop’s settlement proceeds, is not immediately clear how the interests of Bishop and Clay might diverge with respect to the third cause of action.

Second,

while DeLuca provides a list of potential decisions which may implicate Clay’s personal interests in this litigation, these concerns are hypothetical in nature. For example, DeLuca argues that Clay’s representation of Bishop

creates a risk that Bishop may have claims against Clay arising from the representation in the Underlying Action that should be asserted against Clay in an additional Cross-Complaint in this action. (Mot., at p. 8.) DeLuca also speculates that Bishop and Clay may have competing defenses or litigation positions, including positions on the allocation of fault, or that one party may be required to testify against the other. (Ibid.) However, DeLuca's speculative arguments are not based on any concrete factual assertions and instead rely on vague implications about potential future conflicts. DeLuca does not identify any evidentiary support showing that Bishop and Clay's interests are presently adverse to each other or that Clay's professional judgment has been compromised. The mere "appearance of impropriety by itself does not support a lawyer's disqualification." (DCH Health Services Corp. v. Waite (2002) 95 Cal.App.4th 829, 832.) DeLuca's arguments are insufficient to overcome his burden of demonstrating a "manifest and glaring" ethical breach, let alone a breach that impacts DeLuca's interests in any manner. (Lee C., supra, 18 Cal.App.5th at p. 1083.)

Third,

DeLuca fails to overcome the rule that a conflict of interest under CRPC Rule 1.7, subd. (b) is waivable with client consent. DeLuca argues that this conflict is incurable because Clay cannot reasonably believe that "he will be able to provide competent and diligent representation" to Bishop based on their concurrent interests in the litigation. (CRPC Rule 1.7, subd. (d).) The Court is not persuaded. DeLuca essentially argues that Clay cannot maintain his professional judgment simply because Clay and Bishop are co-defendants in this action. If it were the case that an attorney's professional judgment would always be impaired simply by nature of being named as a co-defendant with their client, then such a conflict would be categorically incurable. This is not the case. CRPC Rule 1.7, subds. (b) and (d) recognize that there are some circumstances where a client's interest in maintaining the counsel of their choice outweighs the risk of a potential conflict of interest with their attorney. DeLuca also offers no factual support for his assumption that Clay is unable to provide Bishop with competent and diligent representation while acting as Bishop's counsel in the instant lawsuit. DeLuca's assumptions are not evidence and do not outweigh Bishop's right to counsel of his choice. (Smith, Smith & Kring v. Superior Court (Oliver) (1997) 60 Cal.App.4th 573, 580 ["[t]he right of a party to be represented in litigation by the attorney of his or her choice is a significant right ... and ought not to be abrogated in the absence of some indication the integrity of the judicial process will otherwise be injured..."].)

Fourth,

DeLuca fails to demonstrate how the potential conflict of interest between Bishop and Clay will result in prejudice to DeLuca or how the conflict would create a significant risk of injury to the integrity of these judicial proceedings. “Disqualification of counsel when consent has been given must be based on a convincing showing of prejudice to the opposing party or the potential for palpable injury to the judicial process.” (Geringer, supra, 94 Cal.App.5th at pp. 822-823; see Doe v. Yim (2020) 55 Cal.App.5th 573, 584 [Disqualification of counsel permitted despite client consent where counsel’s “dual role” created a “risk of misleading the jury” and prejudicing the opposing party].) DeLuca’s motion focuses almost entirely on the purported risks to Bishop, who is not the party requesting disqualification of the Clay Defendants. In fact, Bishop joins in the opposition to this motion. While DeLuca briefly hints at the “integrity of these proceedings” and “public confidence in the administration of justice,” he offers no factual analysis or legal authority supporting this conclusory assertion. (Mot., at p. 12.) “[T]he significant question [in evaluating whether counsel of record must be disqualified] is whether there exists a genuine likelihood that the status or misconduct of the attorney in question will affect the outcome of the proceedings before the court.” (Oaks Management Corporation v. Superior Court (2006) 145 Cal.App.4th 453, 467.) DeLuca fails to resolve this question.

In sum,

DeLuca is seeking an extraordinary remedy of disqualifying another party’s chosen counsel without meaningful factual support to demonstrate a present incurable material conflict. The risk of prejudice to Bishop by disqualifying his chosen counsel at this stage far outweighs DeLuca’s concerns. Should any cognizable ethical issue actually arise in the relationship between Bishop and Clay that impacts Clay’s ability to maintain his independent professional judgment, Clay remains entitled to move to withdraw as counsel and Bishop remains entitled to bring his own motion for disqualification at such a time. Such a drastic remedy at this time is premature and unsupported by the factual record.

Therefore,

DeLuca’s Motion to Disqualify Counsel is DENIED.

Plaintiff Philip P. DeLuca to serve notice of ruling. This tentative ruling (“TR”) shall be the order of the Court unless

changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 8/21/26 @1:30 p.m.